

25VECV04821 25VECV04821

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-09-11

Motion: (1) PLAINTIFF'S MOTIONS TO COMPEL DEFENDANT FORD MOTOR COMPANY TO SERVE VERIFIED OBJECTION-FREE RESPONSES TO PLAINTIFF'S SPECIAL INTERROGATORIES, SET ONE, AND REQUESTS FOR PRODUCTION, SET ONE (2) DEFENDANT'S MOTION FOR RELIEF FROM WAIVER OF OBJECTIONS

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Case Number: 25VECV04821 Hearing Date: September 11, 2026 Dept: U

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR
THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

LUDVIN R. RAMOS,
an individual,

Plaintiff,

vs.

FORD MOTOR COMPANY; and DOES 1-50,
inclusive,

Defendants.

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CASE NO: 25VECV04821

[TENTATIVE] ORDER RE:

(1) PLAINTIFF'S

MOTIONS TO COMPEL DEFENDANT FORD MOTOR COMPANY TO SERVE VERIFIED
OBJECTION-FREE RESPONSES TO PLAINTIFF'S SPECIAL INTERROGATORIES, SET ONE, AND
REQUESTS FOR PRODUCTION, SET ONE

(2) DEFENDANT'S

MOTION FOR RELIEF FROM WAIVER OF OBJECTIONS

Dept. U

8:30 a.m.

September 11, 2026

I.

BACKGROUND

This is a lemon law
action. On August 26, 2025, Plaintiff Ludvin R. Ramos ("Plaintiff") filed his
complaint against Defendants Ford Motor Company and Does 1-50, alleging:

(1) violation of Song-Beverly Consumer Warranty Act; (2) Breach of Implied Warranties Pursuant to Song-Beverly; (3) Failure to Promptly Repurchase Product Pursuant to Song-Beverly; and (4) Failure to Commence Repairs Within a Reasonable Time and to Complete them Within 30 Days Pursuant to Song-Beverly.

On July 29, 2026,
Plaintiff filed the instant motions to compel initial discovery.

On August 12, 2026,
Defendant filed the instant motion for relief from waiver.

Defendant filed an
opposition to Plaintiff's motions to compel on August 28, 2026.

As of 5:00pm on
September 8, 2026, nothing further has been filed.

II.

LEGAL STANDARD

a.

Motion for Relief of Waiver of Objections

"If a
party to whom interrogatories are directed fails to serve a timely
response, the party waives any objection to the requests, including one based
on privilege." (Code Civ. Proc., § 2030.290.) However, a party
may be relieved of that waiver if "(1) [t]he party has subsequently served a
response that is in substantial compliance with [the Discovery Act]" and "(2)
[t]he party's failure to serve a timely response was the result of mistake,
inadvertence, or excusable neglect." (Code Civ. Proc., § 2030.290, subds.
(a)(1)-(2).)

"If a party to whom a demand for
inspection, copying, testing, or sampling is directed fails to serve a timely
response to it," the party "waives any objection to the demand, including one
based on privilege or on the protection for work product." (Code Civ. Proc., §
2031.300.) "The court, on motion, may
relieve that party from this waiver on its determination that both of the

following conditions are satisfied: (1) The party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280," and "(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect." (Code Civ. Proc., § 2031.300, subds. (a)(1)-(2).)

The Civil Discovery Act does not include a definition of "substantial compliance," and few cases have addressed the circumstances under which a response will be deemed not in substantial compliance. (See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 778 (St. Mary).) Substantial compliance means actual compliance with respect to the substance essential to every reasonable objective of the statute. (*Id.* at p. 790.) However, substantial compliance should not be understood as requiring actual compliance with every specific statutory requirement. (*Ibid.*)

A court may not find that only some portions of a document containing responses are code-compliant, but must instead determine whether the document as a whole substantially complies. (*Ibid.* [this position is supported by the fact that there is an effective statutory vehicle to compel a responding party to cure unsatisfactory responses].)

The statutory language "mistake, inadvertence, or excusable neglect" in the discovery statute should be interpreted using the same general principles developed in application of the identical language in section 473, subdivision (b). (*Scottsdale Ins. Co. v. Superior Court* (1997) 59 Cal.App.4th 263, 275.) Although the party moving for relief under section 473 has the burden to show that the mistake, inadvertence, or neglect was excusable, any doubts as to that showing must be resolved in favor of the moving party. (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1420.)

b.

Motion to Compel Initial Responses to
Requests for Production of Documents

Where

there has been no response to a demand to produce documents, the demanding party may seek an order compelling a response.¿ (Code Civ. Proc., § 2031.300.)¿

A party's failure to timely respond waives all objections.¿ (Ibid.)¿

c.

Motion to Compel Initial Responses to
Interrogatories

If

a party to whom interrogatories are directed fails to serve a timely response,
the propounding party may move for an order compelling a response.¿ Code Civ.
Proc., § 2030.290.¿ A respondent's failure to timely respond waives all
objections.¿ (Ibid.)¿

III.

DISCUSSION

a. Defendant's

Motion for Relief from Waiver is granted.

Defendant seeks relief from the waiver of objections on
the basis that they served substantially compliant responses to Plaintiff's
Special Interrogatories, Set One, and Request for Production, Set One on June
18, 2026. Defendant argues their failure
to serve timely responses was a result of mistake, inadvertence, or excusable
neglect, due to a typo in the electronic service address.

On June 18, 2026, Defendant served substantive responses
to Plaintiff's requests, however mistakenly emailed the responses to
"eservice@resalaw.com" rather than the designated service address,
"eservice@rezalaw.com." (Sullivan Decl., ¶ 4, Exh. B.) The erroneous transmission generated a
bounce-back email that automatically filtered into a spam folder and was
therefore not seen by counsel or staff. (Sullivan Decl., ¶ 6.) Upon learning of the clerical error through
Plaintiff's July 21, 2026, meet and confer letter, Defendant promptly
investigated the issue and re-served the responses on July 22, 2026. (Sullivan
Decl., ¶ 11.)

Defendant's responses were in substantial compliance with
the Discovery Act and sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280, because they included substantive
responses as well as
objections addressing the specific discovery propounded by Plaintiff.

Further, Defendant's failure to timely respond was due to counsel's inadvertence and excusable neglect, as the responses were emailed to the wrong address due to a typographical error.

Therefore, Defendant's motion for relief from waiver is granted.

b. Plaintiff's

Motions to Compel Initial Discovery Responses are denied.

Plaintiff moves to compel Defendant's verified, objection-free narrative answers on the grounds Defendant failed to serve a timely response, and the responses served retained extensive objections. Plaintiff contends Plaintiff electronically served Special Interrogatories, Set One, and Requests for Production, Set One, on May 14, 2026. Defendant's responses were due June 16, 2026. Plaintiff argues Defendant waived all objections when the June 16 deadline expired, and that Defendant's belated responses do not moot Plaintiff's initial-response motions.

In opposition, Defendant argues it timely served its discovery, but to an email address that contained a typographical error, which was a result of mistake, inadvertence, or excusable neglect. Defendant maintains its responses otherwise substantially comply with Code of Civil Procedure section 2031.230. Defendant further avers Plaintiff did not serve his discovery requests until May 20, 2026, therefore Defendant's responses were due on June 19, not June 16. (Wang Decl., ¶¶ 2-3.)

a.

The motions are denied as moot.

Defendant's

evidence supports Defendant's argument that Plaintiff's discovery responses were served on May 20, 2026. (Wang Decl., ¶ 2, Ex. A.) Defendant's responses were due June 19, 2026. (Wang Decl., ¶ 3.) Defendant served responses on June 18, 2026, but the electronic service address used for service contained a typographical error, due to a clerical error. (Wang Decl., ¶ 4.) As discussed above, the Court grants Defendant's motion for relief from waiver of objections.

Further,
a motion to compel initial

responses asks only for responses where none were served. Serving late responses does not take away the Court's authority to hear the motion; whether to go forward is left to the Court's discretion. Once the responding party serves complete responses, the relief the motion sought has been provided, and the Court may deny the motion as moot. A party who believes the served responses are deficient must instead move to compel further responses. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403–404, 408–409.)

Plaintiff

admits responses were served prior to filing the instant motions to compel initial discovery. Plaintiff contends the served responses are deficient because they contain boilerplate objections. Therefore, the proper motion would be a motion to compel further responses. Both Plaintiff and Defendant filed a “protective” separate statement with their motions. However, Plaintiff only argues Defendant did not serve a timely response in his separate statement.

Therefore, the Court exercises its discretion to deny Plaintiff's motions to compel initial discovery as moot. 2

IV.

CONCLUSION

Defendant Ford Motor Company's motion for relief from waiver of objections is GRANTED.

Plaintiff Ludvin R. Ramos's motions to compel Defendant Ford Motor Company's initial responses to Plaintiff's Request for Production of Document, Set One, and Special Interrogatories, Set One, are DENIED.

Defendant Ford Motor Company is ORDERED to give notice.

DATED: September 11, 2026

Lee

S. Arian

Judge of the
Superior Court